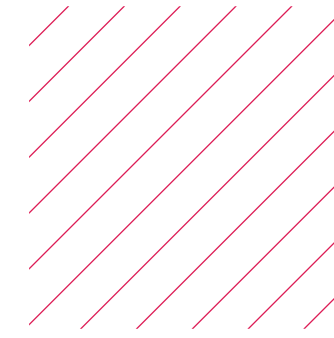




CI INSTITUTE OF NURSING

CERTIFIED NURSE ASSISTANT
TRAINING PROGRAM



MODULE 2: PATIENT/ RESIDENT RIGHTS

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MODULE 2: PATIENT/ RESIDENT RIGHTS

Minimum Number of Theory Hours:

Suggested Theory Hours:

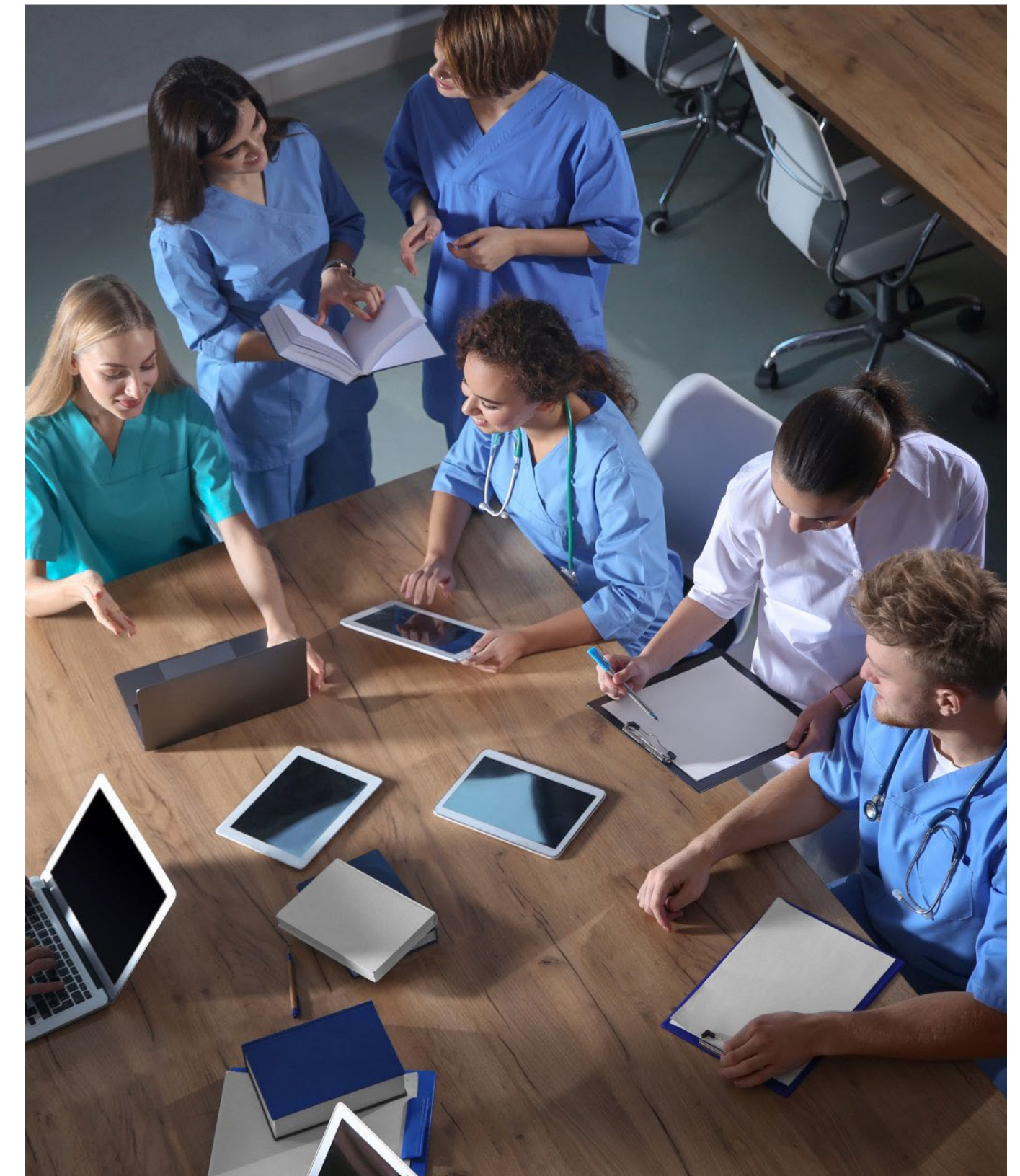
Recommended Clinical Hours:

3

5

1

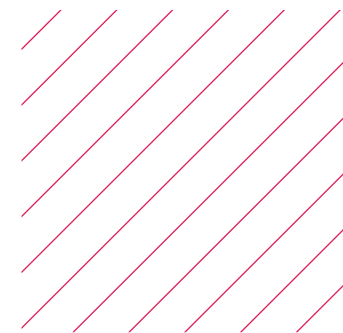
MODULE 2: PATIENT/ RESIDENT RIGHTS



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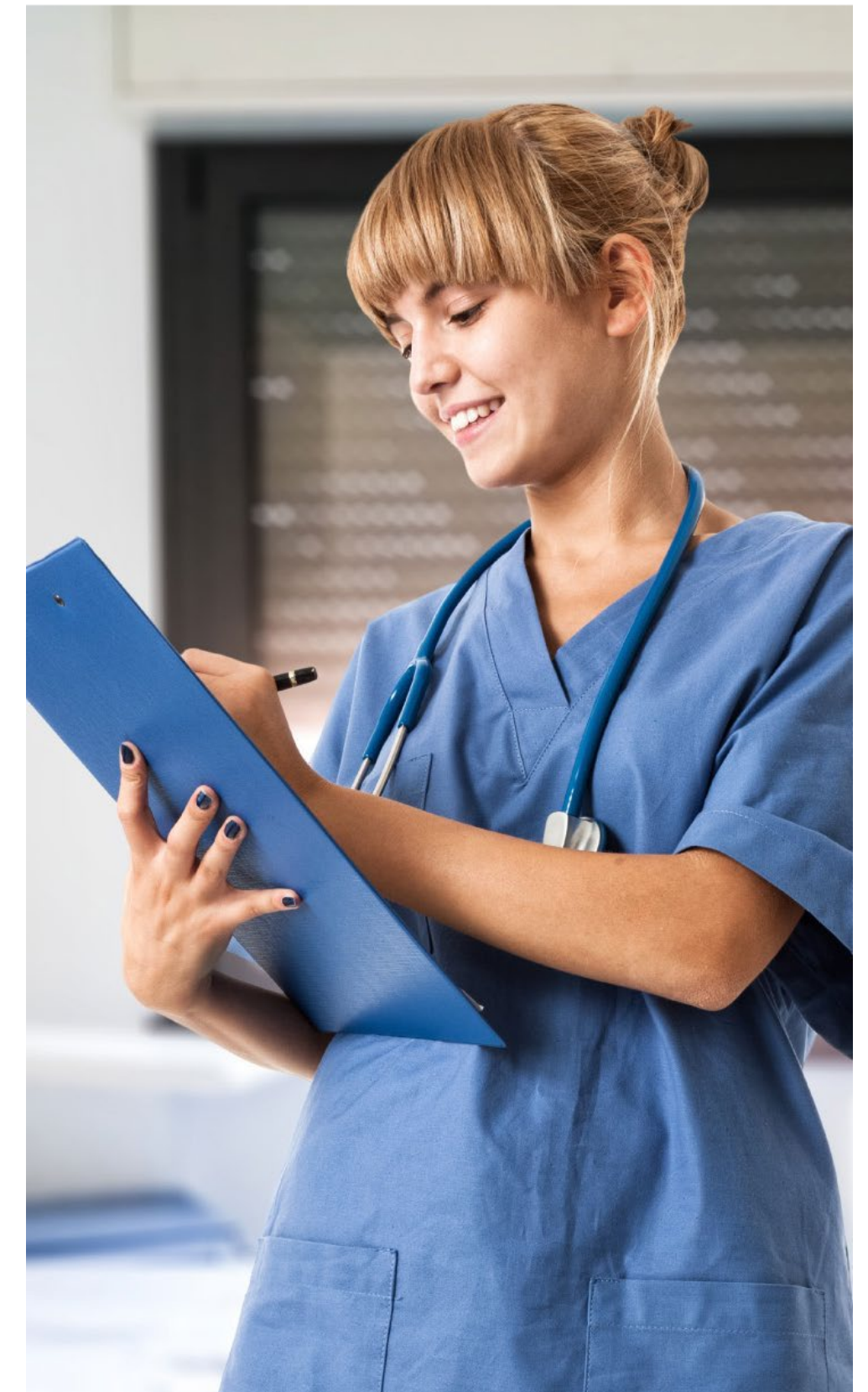
STATEMENT OF PURPOSE

The purpose of this unit is to introduce the Nurse Assistant to patient/resident rights. The fundamental principle behind patient/resident rights is that each patient/resident is a member of a family and of society as a whole. They must be cared for in a manner that protects their rights and meets the individual family, psychosocial and spiritual needs in a long-term care setting. These rights are protected by federal and state regulations.



TERMINOLOGY: Patient, resident, and client are synonymous terms referring to the person receiving care

1. Abuse
2. Advance Directive
3. Aiding and abetting
4. Assault
5. Battery
6. Choice
7. Chronic
8. Coercion
9. Confidential
10. Defamation
11. Defamation of character
12. Do Not Resuscitate (DNR)/ No Code
13. Ethical standard
14. False imprisonment
15. Financial abuse
16. Grievances
17. HIPAA
18. Informed consent
19. Involuntary seclusion
20. Laws
21. Legal standard
22. Libel
23. Mandated reporter
24. Neglect
25. Negligence
26. Ombudsman
27. Physical abuse
28. Policy and Procedure
29. Privacy
30. Psychological abuse
31. Resident council
32. Restraints
33. Scope of practice
34. Sexual abuse
35. Slander
36. Social services
37. Theft
38. Verbal abuse



PERFORMANCE STANDARDS

Upon completion of the three (3) hours of class plus homework assignments and one (1) hour of clinical experience, the learner will be able to:

1. Define key terminology
2. Explain the purpose of a long-term care facility
3. Recognize the role of the Nurse Assistant in maintaining patient/resident rights, as stated in federal and state regulation
4. Compare California Code of Regulations Title 22, Division 5, Chapter 3, 72527, with Title 42 Code of Federal Regulations 483.10 regarding patient/resident rights
5. Explain the Nurse Assistant role in preventing negligent acts and violation of patient/resident rights
6. Describe the Nurse Assistant role in reporting and preventing patient/resident rights violations
7. Describe the role of an ombudsman
8. Identify examples of patient/resident rights, which support a patient's/resident's need for security, belonging and self-esteem



/// DEFINE KEY TERMINOLOGY

- A. Review the terms listed in the terminology section
- B. Spell the listed terms accurately
- C. Pronounce the terms correctly
- D. Use the terms in their proper context



Compare California Code of Regulations Title 22, Division 5, Chapter 3, 72527, with Title 42 Code of Federal Regulations 483.10 regarding patient/resident rights.

A. Residents shall be encouraged/assisted to exercise their rights as a patient and as a citizen, 72527(a). Written policies regarding patient rights must be established and available

10. Patient has right to be treated with consideration, respect, dignity, and individuality, including privacy
 11. Patient has right to not be required to perform work
 12. Patient has right to be able to communicate privately and send/receive mail
 13. Patient has right to participate in social or religious activities
 14. Patient has right to be allowed to retain and use personal clothing and possessions
 15. If married, to be provided privacy and share a room if both are patients in the facility
 16. Patient has right to have daily visiting hours
 17. Patient has right to have visit by clergy at any time
18. Patient has right to have relatives, or person responsible to visit critically ill patient at any time
 19. Patient has right to be allowed privacy for visits
 20. Patient has right to be allowed access to telephone and confidential calls
 21. Right to participate in the electoral process - voting





Compare California Code of Regulations Title 22, Division 5, Chapter 3, 72527, with Title 42 Code of Federal Regulations 483.10 regarding patient/resident rights.

B. Patient rights may only be denied or limited for good cause evidenced by doctor's order and may be denied or limited only if allowed by law

C. California Health and Safety Code (Skilled Nursing and Intermediate Care Facility Patient's Bill of Rights)

1. [1599.1] Written policies regarding the rights of patients shall be established and made available to patient, guardian, next of kin, sponsor, and public
 - a. In addition to patient rights and obligations defined in the regulations
 - 1) The facility shall employ adequate, qualified staff
 - 2) Assure personal hygiene of patients, including prevention of pressure ulcers and incontinence
 - 3) Provide diet to meet patient needs
 - 4) Activities and promotion of self-care
 - b. The facility shall be clean, sanitary and in good repair including the nurses call system
2. [1599.2] Written information informing patients of their rights include facility requirements in the Health and Safety Code and Title 22.
 - a. Violations of either code may be grounds for civil or criminal proceedings against the facility or its personnel
 - b. Patients have the right to voice grievances free of reprisal and to submit complaints to the Department of Public Health Services (CDPH)
3. [1599.3] Rights of patients who are determined to be incompetent, incapable of understanding, exhibits a communication barrier are to be carried out/protected by guardian, next of kin, conservator, sponsoring agency or representative unless it is the facility



Compare California Code of Regulations Title 22, Division 5, Chapter 3, 72527, with Title 42 Code of Federal Regulations 483.10 regarding patient/resident rights.

A. Residents shall be encouraged/assisted to exercise their rights as a patient and as a citizen, 72527(a). Written policies regarding patient rights must be established and available

1. Patient must be informed of rights, rules and regulations regarding patient conduct
2. Patient must be informed of services and charges
3. Patient must be informed of medical condition by doctor and have opportunity to participate in planning of medical treatment
4. Patient can refuse treatment and be informed of consequences (informed consent)
5. Patient can be transferred or discharged only for medical reasons, welfare, other patients' welfare, or for nonpayment
6. Patient shall be assisted to exercise rights, voice grievances, recommend changes in policy and services, have outside representation, and freedom from restraint, interference, coercion, discrimination and reprisal
7. Patient allowed to manage their personal finances
8. Patient has right to be free from mental and physical abuse and chemical and physical restraints
9. Confidential treatment of records
 - a. Health Insurance Portability and Accountability Act (HIPAA)
 - b. Standards and safeguards for documentation and transmission of health records to assure privacy and security of this data

/// Explain the purpose of a long-term care facility.

- A. Provide physical care
- B. Provide focused care for patients/residents with special needs
- C. Provide a team approach to care and services
- D. Prevent illness/injury and loss of function
- E. Promote recovery and health in a setting that serves as both care facility and residence
- F. Assist patient/resident in reaching their maximum potential both physically and mentally



Recognize the role of the Nurse Assistant in maintaining patient/resident rights, as stated in federal and state regulations.

- A. The Nurse Assistant is responsible for being familiar with regulations that provide for patient/resident rights and for assisting patients/residents to exercise their rights
- B. Patient/resident rights are protected by federal regulations for long-term care facilities
- C. Title 42, Code of Federal Regulations Resident Rights (483.10): Residents living in a health care facility should have the same rights as those held by all U.S. Citizens.
 - 1. Residents have the right to be free of interference, coercion, discrimination, or reprisal from the facility in exercising their rights. They include:
 - a. Quality of life
 - 1) Residents have the right to the best care available
 - 2) Dignity, choice and independence are important
 - b. Services and activities to maintain high level of wellness
 - 1) Residents must have the correct care that should keep them as healthy as possible every day
 - 2) Health should not decline as a direct result of the facility's care



Recognize the role of the Nurse Assistant in maintaining patient/resident rights, as stated in federal and state regulations.

- c. The right to be fully informed about rights and services
 - 1) Residents must be told what care and services are available
 - 2) They must be told the charges for each service
 - 3) Legal rights must be explained in a language they understand, a written copy is given to them
 - a) Right to be notified in advance of any room change or roommate
 - b) Right to communicate with someone who speaks their language
 - c) Right to obtain assistance for any sensory impairment, e.g., blindness
 - 4) Informed consent is a concept that goes along with this. A person has the right to direct what happens to his or her body
- d. The right to make independent choices
 - 1) Residents have the right to make choices about their doctors, care and treatments
 - 2) Rights to make personal decisions. These include what to wear and how to spend their time. They can join in community activities, both inside, and outside the nursing home
- e. The right to privacy and confidentiality
 - 1) Residents can expect privacy with care given. Their medical and personal information cannot be shared with anyone but the healthcare team
 - 2) Residents have the right to private, unrestricted communication with anyone they choose (HIPAA protects residents' privacy)

Recognize the role of the Nurse Assistant in maintaining patient/resident rights, as stated in federal and state regulations.

- f. The right to dignity, respect and freedom
 - 1) Resident must be treated with dignity by caregivers
 - 2) They cannot be abused in any way
- g. The right to security of possessions
 - 1) Resident's personal possessions must be safe at all times. They cannot be taken or used by anyone without resident's permission
 - 2) Residents have the right to manage their own finances
- h. The right to complain
 - 1) Residents have the right to complain without fear or punishment
 - 2) Facility must quickly try to resolve complaints
- i. The right to participate in their own care
- j. The right to visits, receive mail, and telephone calls



Recognize the role of the Nurse Assistant in maintaining patient/resident rights, as stated in federal and state regulations.

D. Admission, Transfer and Discharge (483.12):

1. Residents have the rights to stay in a facility unless a transfer or discharge is needed. Location changes must be made safely and with resident knowledge and consent
2. Policies related to the admission of the resident must be based on the ability to provide adequate care
3. Those policies for transfer and discharge activities must be based on the resident's needs and welfare, concern for the safety and welfare of other residents, or as a result of nonpayment for services
 - a. Transfer and discharge requirements
 - 1) Notice of 7 days bed-hold policy and readmission requirements
 - 2) Equal access to quality care regardless of payment
 - b. Admission policy
 - 1) Resident care policies
 - 2) 30 days' notification prior to permanent discharge

Recognize the role of the Nurse Assistant in maintaining patient/resident rights, as stated in federal and state regulations.

E. Resident Behavior and Facility Practices (483.13)

1. The resident has the right to be free from any physical restraints imposed, or from psychoactive drugs that are administered for the purpose of discipline or convenience and are not required for treatment of the resident's medical symptoms
2. Restraint
 - a. Physical (i.e., soft belt, bed rails, geri-chair, mittens, soft ties, locked wheelchair, lap buddy-if cannot be removed by patient)
 - b. Chemical (i.e., psychotropic drugs)
3. Freedom from abuse
 - a. Financial; stealing or borrowing items or accepting gifts
 - b. Verbal; teasing, profanity, racial slanders, threats
 - c. Sexual; overtures, innuendo, gestures, inappropriate touching
 - d. Physical; battery, kicking, biting, hitting, shoving, pulling hair, rough handling
 - e. Psychological; ridiculing, ignoring, manipulating
 - f. Involuntary seclusion; isolation
 - g. Abandonment; leaving someone unattended
 - h. Neglect; failure to provide care that a reasonable person would provide. (i.e., not answering call light, smells of urine and not being cleaned/changed)

Recognize the role of the Nurse Assistant in maintaining patient/resident rights, as stated in federal and state regulations.

F. Role of Nurse Assistant

1. Self-care; personal stress management (i.e., identify stressors), take breaks, take lunch, proper nutrition, exercise, sleep, support network of family and friends, seek out professional intervention as needed
2. Communication with supervisors
3. Identify resident abuse; signs and symptoms, suspected, verbal account, witnessed or known
4. Mandated reporter; SOC341 (reporting form), aiding and abetting, ombudsman, California Department of Public Health (CDPH)
5. Documentation

G. Quality of Life (483.15)

1. The resident must be cared for in a manner and in an environment that promotes maintenance or enhancement of each resident's quality of life
2. Care and environment includes:
 - a. Dignity
 - b. Self-determination and participation
 - c. Participation in resident and family groups
 - d. Participation in other activities
 - e. Accommodation of needs
 - f. Activities
 - g. Social Services
 - h. Personal living environment
3. Identify environmental and personal living area hazards to prevent incidents and/or accidents